

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HOA THE HOANG,

Petitioner

VS.

HANG THI MY NGO,

Respondent

) Case Number: FDI-26-802926

) Hearing Date: September 22, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), SPOUSAL OR
PARTNER SUPPORT, CHILD SUPPORT; REQUEST FOR ORDER OF CHANGE OF CHILD
CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Hoa The Hoang and Respondent, Hang Thi My Ngo (aka
“Hellen”). They share two minor children: Han Ngoc Bao Hoang (DOB: 06/18/09) and Kathy
Hoang (DOB: 06/08/15).
- 2) On June 10, 2026, Mother filed an Income and Expense Declaration. Mother states she is 44
years old, employed as a manicurist, works 40 hours per week, and is paid approximately \$5,320
per month; however, Mother states her average monthly income is \$5,100. Mother provides that
Father’s monthly income is \$42,229. Mother indicates her total monthly expenses are \$6,225.
Mother indicates both minor children reside with her. Mother has the minor children full-time.
- 3) On June 18, 2026, Mother filed a Request for Order seeking initial child custody and visitation
orders. Hearing set on August 3, 2026 (Readiness). In addition, she is also seeking pendente lite
orders for child and spousal support. She is seeking sole legal and sole physical custody of the

1 minor children. The Court notes that there is a Domestic Violence Restraining Order filed April
2 15, 2026, in which Wife/Mother is a protected party. Within that order, the Court adopted their
3 parenting plan (stipulation), which was filed on March 25, 2026. It should further be noted that
4 custody orders were not made.

- 5 4) On June 23, 2026, Father filed a Request for Order in which he seeks a modification of the
6 existing child custody and visitation orders. Father is requesting joint legal and joint physical
7 custody and an equal parenting plan. Hearing set August 3, 2026 (Readiness).
- 8 5) On June 29, 2026, Mother filed another Request for Order, which is identical to the Request for
9 Order she filed on June 18, 2026. This RFO was set for Readiness on August 17, 2026. Neither
10 party appeared at the Readiness hearing and the Court dismissed this RFO.
- 11 6) On July 09, 2026, Mother filed a proof of service indicating Father was served by mail with
12 Mother's Request for Order.
- 13 7) On July 21, 2026, Mother's counsel submitted a supplemental declaration in support of Mother's
14 Request for Order. The supplemental declaration included a "California Support Report"
15 attachment, indicating Mother's monthly income is \$5,100 and Father's monthly income is
16 \$3,519. Accordingly, Mother requested Father to pay \$1,191.00 per month in child support and
17 \$0 in spousal support.
- 18 8) On July 21, 2026, a proof of service was filed indicating that Mother's supplemental declaration
19 was mailed to Father. Father did not file a Responsive Declaration to Mother's Request for Order.
- 20 9) On August 3, 2026, the parties appeared at the Readiness hearing and the Court referred the
21 parties to FCS Mediation to occur on September 1, 2026. The Court also scheduled a return for
22 September 22, 2026.
- 23 10) The Court notes that neither party filed a Responsive Declaration to the other party's respective
24 RFOs.

25 **B. Tentative Ruling**

- 26 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
27 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
28 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
29 child(ren) is the United States.

1 2) Father's requests, as stated in the RFO he filed on June 23, 2026 are all DENIED. There is
2 Restraining Order After Hearing in which Mother is the protected party, which is in effect. Until
3 such time as Father rebuts the California Family Code section 3044 presumption, this Court
4 cannot order joint legal and joint physical custody. This Court is also unable to grant a 50/50
5 parenting plan, as any such plan would constitute joint physical custody.

6 3) Mother's requests, as stated in the RFO she filed on June 18, 2026 are GRANTED in part. The
7 Court issues the following orders:

8 a. Mother shall have sole legal and sole physical custody of both children.

9 b. Father's parenting time with the children, shall continue to be as ordered in the
10 stipulation and order filed on March 25, 2026 and contained within the Restraining
11 Order After Hearing.

12 4) Accordingly, Mother's unopposed request for child and spousal support is GRANTED.

13 5) The Court finds good cause to adopt Mother's California Support Report filed 7/21/26, which are
14 attached hereto and incorporated herein.

15 6) For the period of 6/29/26 (i.e., the filing date of the Request for Order) – 9/31/26, Father shall pay
16 Mother \$0 in monthly temporary spousal support.

17 7) For the period of 6/29/26 (i.e., the filing date of the Request for Order) – 9/31/26, Father shall pay
18 Mother \$1,191.00 in temporary monthly child support.

19 8) This means that Father owes Mother a total of \$3,612.70 in child support arrears for the period of
20 6/29/26 – 9/31/26 (\$39.70 for June + \$3,573.00 for July – September). Father shall pay an
21 additional \$602.12 for the next 6 months, on the 1st of every month, starting on October 1st,
22 2026, or until arrears are satisfied. Thus, commencing 10/1/26, Father shall pay Mother a total of
23 \$1,793.12 (\$1,191.00 + 602.12).

24 9) Once arrears are satisfied, Father shall pay Mother \$1,191.00 in child support by the 1st of every
25 month.

26 10) Counsel for Respondent/Mother shall prepare the Findings and Order After Hearing.

27 11) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
28 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
29 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within
3 10 days may allow the other party to prepare a proposed order and submit it to the court in
4 accordance with CA Rules of Court, Rule 5.125(d).
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